

SENATE No. 3125

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

SENATE, July 1, 2026.

The committee on Health Care Financing to whom was referred the Senate Bill enhancing access to abortion care (Senate, No. 1244), - reports, recommending that the same ought to pass with an amendment substituting a new draft with the same title (Senate, No. 3125) [Fiscal amount: More than \$100,000.00]

For the committee,
Cindy F. Friedman

SENATE No. 3125

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An Act enhancing hospital emergency services.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 51.25 of chapter 111 of the General Laws, as inserted by
2 section 11 of chapter 16 of the Acts of 2025, is hereby amended by striking out subsection (d)
3 and inserting in place thereof the following subsections:-

4 (d) The attorney general may bring a civil action for injunctive or other equitable
5 relief to enforce this section. In any action brought by the attorney general under this section, the
6 court may also award a civil penalty of not more than \$50,000 for each violation. A hospital or
7 person engaging in gross, flagrant, or repetitive violations of this section shall be subject to
8 license revocation.

9 (e) Annually, not later than September 1, a hospital licensed under this chapter with an
10 emergency care department shall submit to the department a written report that includes the
11 hospital's policies, procedures and processes for providing services consistent with this section.

12 (f) An individual who suffers personal harm as a direct result of a violation of a
13 requirement of this section may bring an action for damages in a court of competent jurisdiction.